

**In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 1225 of 2018

Md. Zahed Iqbal Khan
.....Appellant

-Vs-

The State and another
Mr. Md. Nashir Uddin, Advocate with
Mr. Md. Humayun Kabir, Advocate with
Mr. Md. Alamgir Hossain, Advocate
..... For the appellant
Mr. S.M. Golam Mostofa Tara, DAG with
Mr. A. Monnan, A.A.G
....for the State
M/s. Chowdhury Nasima, Advocate
....For the respondent No. 2ACC

**Heard on 16.07.2024, 24.07.2024, 29.07.2024,
18.07.2024.**

Judgment delivered on 27.08.2024

This appeal under Section 10(1) of the Criminal Law Amendment Act, 1958 is directed against the judgment and order of conviction and sentence dated 23.01.2018 passed by the Divisional Special Judge, Chittagong in Special Case No. 08 of 2015 arising out of Double Moring Model Police Station Case No. 12 dated 13.07.2014 convicting the appellant under section 161 of the Penal Code, 1898 and section 5(2) of the Prevention of Corruption Act, 1947 and sentencing him under section 161 of the said Act to suffer simple imprisonment for 01 (one) year and also to pay fine of Tk. 10,000(ten thousand), in default, to suffer simple imprisonment for 03 (three) months more.

The prosecution case, in short, is that one MS. Akter Jahan Bela is an income tax payee of Taxes Circle-75, Taxes Zone-4, Chattogram. In the assessment year 2012-2013 total rent of her house has been shown at Tk. 2,74,411 wrongly in the return but actual rent of her house was Tk. 6,84,000. The accused Md. Zahed Iqbal Khan, Head Assistant, of the Office of the Deputy Commissioner of Taxes, Taxes Circle-75, Taxes Zone-4, Chattogram is the dealing assistant of the concerned income tax file of the wife of the Abul Kashem Bhuiyan. When the mistake was detected the accused Md. Zahed Iqbal received Tk. 22,000 to rectify the wrong but he did not issue the demand note. From his Mobile No-01711140871, he called mobile No. 01850412885 stating that he would issue a demand note only for Tk. 100,000 if he pay Tk. 20,000 as a bribe. The conversation between P.W. 11 Abul Kashem Bhuiyan and the accused was recorded in the audio. He decided to inform the matter to the ACC. After that, 20 notes of Tk. 1000 were handed over by complainant Abul Kashem Bhuiyan to the informant in the presence of (1) Lokman Hakim and (2) Md. Osman Gani. After approval of the concerned authority and preparing an inventory of the said notes, Tk. 20,000 was returned to Md. Abul Kashem Bhuiyan. He informed that he will hand over Tk.20,000 on 13.7.2014 at 11.00 am to the accused Md. Zahed Iqbal Khan. The informant P.W.1 A.H.M.Akteruzzaman along with his team remained in hiding in the Office of the Deputy Commissioner, Taxes. At the time of handing over the bribe, the informant along with the members of the trap team entered the office room of accused Md. Zahed Iqbal Khan and challenged the accused regarding the bribe received from the complainant P.W. 11 Abul Kashem Bhuiyan and instantaneously on 13.7.2014 at 11.50 am recovered Tk. 20,000 kept in the middle drawer of the table of the

accused Md. Zahed Iqbal Khan along with 2 mobile sets and seized the recovered money and the mobile sets. After examining the recovered notes, he found that recovered 20 notes of Tk. 1000 are identical to the notes mentioned in the list of inventory. The accused was arrested.

P.W.15 Khandkar Aktheruzzaman took up the investigation of the case. During the investigation, he visited the place of occurrence, prepared the sketch map and index, and seized the CD of the conversation between the accused and Abul Kaskem Bhuiyan. On 11.8.2014, he seized the tax file of the wife of the complainant Abul Kashem Bhuiyan, and recorded the statement of the witnesses under section 161 of the Code of Criminal Procedure, 1898. After completing the investigation, he found the prima facie truth of the allegation made against the accused and obtained permission vide memo No. 37151 dated 22.12.2014 to submit charge sheet and accordingly, he submitted charge sheet on 31.12.2014 against the accused under section 161 of the Penal Code, 1860 and section 5(2) of the Prevention of Corruption Act, 1947.

After that, the case was sent to the Senior Special Judge, Chattogram who took cognizance of the offence against the accused under section 161 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and thereafter the case was transferred to the Divisional Special Judge, Chattogram for disposal. During the trial, charge was framed against the accused under section 161 of the Penal Code, 1860 and section 5 (2) of the Prevention of Corruption Act, 1947 which was read over and explained to him and he pleaded not guilty to the charge and claimed to be tried following the law.

The prosecution examined 15 witnesses to prove the charge against the accused and the defence cross-examined the prosecution witnesses. After the examination of prosecution witnesses, the accused was examined under section 342 of the Code of Criminal Procedure, 1898 and he declined to examine any DW. After concluding the trial, the trial court by impugned judgment and order convicted the accused and sentenced him as stated above against which the accused filed the instant appeal.

P.W. 1 A. H. M. Akhtaruzzaman is the informant. He stated that on 10.7.2014 he was discharging his duty as Sub-Assistant Director of the ACC, Combined District Office, Chattagram-1. Abul Kashem Bhuiyan applied to the Anti-Corruption Commission, Divisional Office, Chattogram stating that there was a mistake in the income tax return of his wife Akter Jahan Bela of 2012-2013. The accused Md. Zahed Iqbal Khan received Tk. 22,000 to amend the income tax file of his wife. He further demanded Tk. 100,000 to issue the demand note for Tk.20,000 in place of Tk.100,000. His application was recorded in the register as ER No. 43 dated 10.7.2014. He proved the said application as exhibit 1. Director Abul Aziz Bhuiyan formed a 5 member committee headed by Abu Sayed, Sub-Assistant Director of ACC, Combined District Office, Chattogram-I and approved through fax to conduct a trap case. He proved the approval dated 10.7.2014 as exhibit 2. The team leader Md. Abu Sayed sent a requisition to the Deputy Commissioner for the appointment of a Magistrate and accordingly, the Executive Magistrate Tamim was appointed to conduct the trap case. Another requisition was issued to the Public Works Department and accordingly SAF Md. Lokman Hakim and Account Assistant Osman Gani were appointed. On 13.7.2014 at 11.00 am 20 notes of Tk. 1000, Tk.20,000, was given by Abul Kashem Bhuiyan and a list of

inventory was prepared in the presence of the Executive Magistrate and the employees of the Public Works Department and the Executive Magistrate signed 20 notes of Tk. 1000. Subsequently, 20 notes of Tk.1000 were handed over to Abul Kahem. He proved the inventory as exhibit-3 and his signature as extrinsic-3/1. On 13.7.2014 at 11.15 am, the members of the trap team and others went to the office of the Taxes Zone-4. Taxes Circle-75 and remained in hiding. The accused Md. Zahed Iqbal Khan was sitting in his office on the 5th floor. At 11.30 am Abul Kashem Bhuiyan handed over Tk. 20,000 to the accused and he along with other members of the trap team had challenged the accused regarding the receipt of Tk.20,000 as a bribe from Abul Kashem Bhuiyan and recovered Tk. 20000 and 2 mobile sets from the middle drawer of the table of the accused. On examination of the recovered notes, he found that the recovered notes were identical to the notes mentioned in the list of inventory. At that time, he seized the recovered Tk. 20,000, 2 mobile sets and the records of TIN No. 354-104-9994/Sa-75 kept on the table of the accused. He proved the seizure list as exhibit-4 and his signature as exhibit-4/1. He proved 20 notes of the 1000 as material exhibit-I and the tax file mentioned in the seizure list as material exhibit-II, He proved the FIR as exhibit-5 and his signature as exhibit-5/1. During cross-examination, he stated that the trap proceeding was initiated regarding the tax file of Akter Jahan Bela and her 4th storied building has been mentioned in the ER. He did not inquire as to how Akter Jahan Bela became the owner of the 4th-story building. He could not say how many rooms were there on the 5th floor but stated that the accused used to sit in a room along with another person. He could not say the name of that person. He did not inform about the arrest of the accused to his superior officer. He could not remember whether there was any lock in the drawer where from the money was recovered.

There were 6 members of the trap team. Abul Kashem Bhuiyan entered the office before his entry and he was standing on the stairs along with Khlilur Raham. Opening the drawer, he found Tk. 20,000. He could not say whether the accused was the President of the employees union. He denied the suggestion that the trap was conducted to harass the accused.

P.W. 2 Abu Sayed stated that from 8.6.2014 to 20.11.2015 he was discharging his duty as Deputy Director of ACC, Combined District Office, Chattogram-I. A 5 member trap team was formed on 10.7.2014 by the Divisional Office, Chattogram regarding ER No. 43 dated 10.07.2014 and he was the head of the trap team. The Divisional Director Abdul Aziz was supervising the trap proceeding. The requisitions were sent to the Deputy Commissioner to appoint a Magistrate and for the appointment of 2 witnesses to the Executive Engineer, Public Works Department. Thereafter, the Executive Magistrate, Tamim Al Yeasin and 2 witnesses were appointed. On 13.7.2014 at 11:00 am a list of inventory of 20 notes of Tk.1000 was prepared and supplied by Abul Kashem Bhuiyan and the Executive Magistrate and other witnesses signed the list of inventory. After that, Tk. 20,000 was handed over to Abul Kashem Bhuiyan. On 13.7.2014 at 11:15 am he along with the other members of the trap team went to the office of the Taxes Circle-75, Taxes Zone-4 situated at 137/A, Rahim mention, Road No. 1, CDA Residential Area, Agrabad, Chattogram. At 11.25 am he along with Sub-Assistant Director H.M. Aktaruzzaman and Sub-Assistant Director Khalilur Rahman of ACC took their position on the 5th floor of the Taxes Circle-75. After that, he found that Abul Kashem Bhuiyan entered the office of the accused Md. Zahed Iqbal Khan. He took position on the 6th floor outside the office of the accused. Sensing the handing over of the bribe by Abul Kashem Bhuiyan to accused Md. Zahed Iqbal, he entered the office of

the accused. At that time, he challenged the accused Zahed Iqbal Khan and following his instruction Sub-Assistant Director Akteruzzaman and Sub-Assistant Director Khalilur Rahman having disclosed their identity also challenged the accused regarding the bribe received from Abul Kashem Bhuiyan. At that time in his presence, the accused was detained along with the money. In the meantime, the Executive Magistrate and the witnesses of the trap team entered the place of occurrence and recovered Tk. 20,000 from the drawer of the accused. A.H.M. Akteruzzaman recovered Tk. 20,000 from the drawer of the accused. On examination of the recovered notes, it was found that the recovered notes are identical to the notes mentioned in the list of inventory. The Deputy Director H.M. Aktaruzzaman recovered Tk. 20,000, 2 mobile sets of the accused Zahed Iqbal Khan and the income tax records of the Akhtar Jahan Bela, wife of Abul Kashem Bhuiyan, and the accused was arrested. During cross-examination, he stated that Abdul Aziz Bhiyan was the director at the time of occurrence and he supervised the trap proceeding. The complainant Abul Kashem Bhuiyan is a government employee. At the time of conducting the trap, the higher officer Mehedi Hasan was on leave. He along with the informant and Khalilur Rahman challenged the accused regarding the bribe received by him. Subsequently, others came to the place of occurrence. He took position beside the room of the accused. At the time of the seizing, another employee of the taxes department who was sitting in the room of the accused came to the place of occurrence but he was not cited as a witness in the case. He denied the suggestions that the trap team was not constituted following the law and that Tk.20,000 was not recovered from the drawer of the accused.

P.W. 3 Serajul Haque stated that from 2012 to 2014, he was discharging his duty as Deputy Director of ACC, Combined District

Office, Chattogram. On 10.07.2014 a trap team was formed. He was a member of the trap team. As a member of the trap team, he went to the office of the Taxes Circle-75, situated at 137/A, Road No-1, Rahim Mention, CDA Residential Area, Chattogram. He along with AC Maksud took their position on the 4th floor and AC Nur Hossain Munshi took his position on the 5th floor. Deputy Director Abu Sayed, Deputy Director Aktaruzzaman and Khalilur Rahman took their position on the 5th floor. Sensing the recovery of money on 13.7.2014 at 11.15 am, he along with others went to the 5th floor and saw that the bribed money was recovered and a seizure list was prepared. During cross-examination, he affirmed that did not see the handing over bribe.

P.W.4 Md. Khalilur Rahman Shikder stated that from 01.7.2010 to 10.10.2015 he was discharging his duty as Sub-Assistant Director of ACC, Circle-2, Chattogram. He was the member of the trap team and Abu Sayed of ACC, Combined District Office was the team leader of the trap team. At 11.00 am Abdul Kashem Bhuiyan delivered 20 notes of Tk. 1000, total Tk. 20,000, and a list of inventory was prepared. The Executive Magistrate Tasim Al Yeasin signed the list of inventory. On the same date at 11.15 am, all the members of the trap team went to the office of Taxes Circle-75, Taxes Zone-4. Following the instruction of the team leader, he and another member Akhtaruzzaman took their position on the 5th floor beside the door of the room of accused Zahed Iqbal Khan. After that, Abul Kashem Bhuiyan entered the room of accused Zahed Iqbal Khan and after handing over a packet, the accused kept the packet in his drawer. Instantaneously he and Akhtaruzamun quickly entered the room of the accused and having disclosed their identity challenged him and held his hand. After that, the Executive Magistrate entered the room and in the presence of the Magistrate, a packet was recovered from the

drawer of the accused. On examination of the packet, they found that the notes kept in the packet were identical to the notes mentioned in the list of inventory and in the presence of the Magistrate the recovered money was seized. During cross-examination, he stated that he along with A. H.M. Akhteruzzaman took position behind the door. The team leader and the Magistrate also took their position near them. None of the Officers of the ACC was present along with Abul Kashem. Having received the instruction from the team leader, he and Akhtaruzzaman entered the room and took their position beside the table of the accused. Another employee of the income tax department was sitting beside the accused. He did not sign the list of inventory and the seizure list. He denied the suggestion that Tk. 20,000 was not recovered from the table of the accused and no occurrence took place as stated by him.

P.W.5 Maksudur Rahman stated that on 10.7.2013 he was discharging his duty as a constable and he was a member of the trap team. On 13.11.2014 he went to the office of Taxes Circle-75. Following the instruction of the team leader, he along with Serajul Haque took position on the 3rd floor. At 11.25 am he went to the 5th floor and detained the accused along with money. The list of inventory was prepared and the money was seized. During cross-examination, he stated that he did not see that the accused was detained along with money. He could not say as to how the money was recovered.

P.W. 6 Md. Nur Hossain Munshi stated that on 10.7.2013 he was discharging his duty as Constable of ACC, Chattagram. On that day, as a member of the trap team, he went to the office of the CDA Agrabad. The accused Zahed Iqbal Khan was detained along with money and there was the officer of ACC. During cross-examination,

he stated that he took his position on the 4th floor. He went to the 5th floor after recovering the money. He could not say as to how the money was recovered.

P.W. 7 Md. Lokman Hakim stated that on 13.7.2014 he was discharging his duty as Sub-Assistant Engineer, Public Works Department, EM Sub-Division-2, Chattogram and having receipt of notice from the ACC he went there. At 11.00 am Abul Kashem Bhuiyan presented 20 notes of Tk.1000 in his presence in the office of the ACC. A list of inventory was prepared. He signed the list of inventory. He proved the list of inventory as exhibit-3 and his signature on the list of inventory as exhibit-3/2. On that day, he also went to the Office of Taxes Circle -75, Taxes Zone-4, Chattogram and in his presence the learned Magistrate and the officer of ACC seized Tk.20,000 from the possession of the accused Md. Zahed Iqbal. He signed the seizure list. He proved the seizure list as exhibit-4 and his signature on the seizure list as exhibit-4/2. During cross-examination, he stated that following the instruction of the Executive Engineer he went to the Office of ACC. He was standing at the door of the office of the accused. He did not see the recovery of the money. He affirmed that he found the money on the table. On examination, he found that the recovered notes were identical to the notes mentioned in the list of inventory and accordingly he signed the seizure list.

P.W. 8 Md. Osman Gani stated that on 13.7.2014 he was discharging his duty in the office of the Public Works Department, EM Sub-Division-2 as an Account Assistant. A requisition was sent from the ACC to form a trap team, and accordingly, he went there. 20 notes of Tk.1000 were handed over by Abul Kashem Bhuiyan in the presence of Officers of ACC, the Sub-Assistant Engineer and the learned Magistrate and the list of inventory was prepared. He was also

present there. He signed the inventory. He proved the inventory as exhibit-3 and his signature as exhibit-3/3. Subsequently, he along with the Officers of the ACC and Magistrate went to the Office of the Taxes Circle-75, Taxes Zone-4, Agrabad, Chattogram. Tk. 20,000 mentioned in the list of inventory was recovered from accused Zahed Iqbal at 11.50. He signed the seizure list. He proved the seizure list as exhibit-4 and his signature as exhibit-4/3. During cross-examination, he stated that he was standing in front of the door on the 5th floor. After recovery of the money, he went in front of the accused. After recovery of money, he was called and went there. The Officer of the ACC and the Magistrate called him. They were present in the room of the Head Assistant. The seizure list was prepared on the 5th floor. He denied the suggestions that he did not go to the office of the tax zone and that no seizure list and inventory were prepared and signed by him.

P.W. 9 Md. Jashim Uddin is the Inspector of Taxes Zone-4, Taxes Circle-75, Chattogram. He stated that in 2014 while he was discharging his duty in the office of Taxes Zone-4, Chattogram as Inspector, he conducted the audit regarding the TIN file No. 354 dated 10.4.1994, ETI No.7837-84148543. He proved the report dated 19.2.2014 as exhibit-6 and his signature on the report as exhibit-6/1. He heard that Zahed Iqbal was arrested. During cross-examination, he stated that after taking measurements of the building, he submitted the valuation report. He is not aware of the occurrence.

P.W. 10 Md. Osman Gani is an Upper Division Assistant of Taxes Circle-75, Chattogram. He stated that on 13.7.2014 at 10.30 am he was discharging his duty as UDA of Taxes Zone-4, Taxes Circle-75 Chattogram. At that time, he was instructed to inquire about the assets of Akhter Jahan and accordingly, he issued the notice.

Subsequently, Mr. Jashim was appointed as the investigating officer. He issued the demand note following the report. The file was handed over to accused Zahed Iqbal for signature. On 13.07.2014 at 11.30 am he was present in his office. One Abul Kashem Bhuiyan came to accused Zahed. After some time, the Officers of ACC came to his office, interrogated Mr. Zahed and arrested him along with a yellow envelope. On 30.09.2014 at 10.30 the Table of Zahed was seized and the same was given to his custody. He proved the seizure list and his signature. During cross-examination, he stated that the accused was known to him. The bribed money was kept on the table. He did not see the yellow envelope opening the same.

P.W.11 Abul Kashem Bhuiyan is the complainant. He stated that on 7.10.2013 a notice was sent to his wife Akter Jahan Bela by the Deputy Commissioner of Taxes, Taxes Zone-4. Taxes Circle-75, Chattogram. After receipt of the notice, he communicated with the Deputy Commissioner of Taxes, Mehedi Hasan. The accused Zahed Iqbal, Head Assistant, Deputy Commissioner of Taxes demanded Tk. 100,000 as a bribe. On his request, one month was allowed. The accused Zahed Iqbal requested him through a mobile phone. Since he is an employee of the Telephone Department, he recorded the conversation between him and Md. Zahed Iqbal. Inspector Md. Jashim Uddin after inspection of her house submitted a report. In the report, it has been wrongly mentioned that Tk. 2,74,411 was recovered as rent. Tk. 6,84,000 was recovered as rent. The accused Zahed Iqbal demanded Tk. 20,000 to amend/correct the mistake. He paid Tk. 20,000 as a bribe and Tk.2000 to the other staff. After preparing the demand note, he again demanded Tk. 20,000. After that, he filed a complaint on 10.7.2014 to the ACC regarding the demand of bribe. Following the instruction of the officer of the ACC on 13.07.2017 he went to the office of the ACC along with Tk. 20,000

and handed over the money to the officer of the ACC and the Magistrate prepared the list of inventory. He proved the complaint petition as exhibit 1 and his signature on the complaint as exhibit 1 - 1/1. He proved the list of inventory as exhibit-3 and his signature on the list of inventory as exhibit-3/4. After preparing the list of inventory, the money was again handed over to him. After that, he went to the office of the accused Zahed Iqbal along with Tk. 20000 mentioned in the list of inventory and handed over Tk. 20,000 to the accused. He kept the money in his drawer. Instantaneously, the officer of the ACC caught him red-handed along with money. The accused was taken to the office of the ACC. In the evening, he submitted the recording of the conversation to the officer of the ACC. He proved the recording as material exhibit I. A seizure list was prepared. He signed the seizure list. He proved the seizure list as exhibit-8 and his signature on the seizure list as exhibit 8/1. During cross-examination, he stated that his wife Akter Jahan Bela is a housewife. She obtained a loan from the bank and constructed a 4th-story building on two katas of land. The notice was issued under the signature of Mehedi Hasan, Deputy Commissioner of Taxes. He paid the tax following the valuation report prepared by Inspector of Taxes Jashim Uddin. There is no handwriting of the accused on the income tax file of 2013 but the file was initiated through the accused. He affirmed that the accused used to do all the work regarding the issuance of notices and notes. At the time of handing over the bribe to accused Zahed Iqbal, the Constable of ACC or Inspector went along with him from 11.00 am to 11.30 am but he could not remember their names. Within one minute, the Magistrate, Deputy Director Abu Sayed, Director Abdul Aziz and 4/5 other persons went there. At the time of handing over and accepting the money, he had given the signal, and the Officers of ACC entered into the room of the accused. At the time of handing

over the bribe, the constable of ACC witnessed the occurrence. On the date of occurrence, he went to the office of ACC from 10.00 to 10.30 am. There were two witnesses in the inventory and they were not known to him. He is not aware as to whether the accused Md. Zahed Iqbal was the leader of the employees union. He denied the suggestion that the accused was falsely implicated in this case.

P.W. 12 Tasim Al Yeasin is the Executive Magistrate, Chattogram. He stated that based on the requisition of the ACC by memo dated 13.07.2014 he was appointed as Executive Magistrate. He proved the said memo as exhibit 9. On 13.04.2014 at 10.20 he went to the office of ACC. The list of inventory of 20 notes of Tk. 1000 was prepared. He signed the notes and handed over the signed notes to Abul Kashem Bhuiyan. He proved the 20 notes as material exhibit-I and his signature as material exhibit-I/1. Abul Kashem Bhuiyan went to the office of the income tax department. He went to the office of the income tax department along with the officers of ACC and the signed notes were recovered from the drawer of the accused. During cross-examination, he stated that while he was standing outside the door, he presumed that the money was recovered from the drawer of the accused. The room was situated on the 3rd /4th floor. He stated that he found the money on the table. At the time of recording his statement to the police, it was instructed that the money was recovered from the drawer of the accused. He denied the suggestion that as per the instruction of Abul Kashem, he said that money was recovered from the table of the accused.

P.W.13 Mezbahul Haque is the Data Entry Control Operator. He stated that on 13.7.2014 he was discharging his duty with ACC, Combined District Office, Chattogram. Deputy Director Abu Sayed prepared the list of inventory. Following the instruction of Abu Sayed,

he went to the Office of the Taxes Circle-75. A trap case was initiated. The seizure list and the FIR were typed into his computer. On 13.08.2015 at 15.30 the seizure list was prepared and the conversation between the accused and Abul Kashem was seized. He proved the seizure list as exhibit-10 and his signature as exhibit-10/1. During cross-examination, he stated that he went to the 6th floor of the Office of the Income Tax. He was not involved with the occurrence or investigation of the case. He did not hear the conversation on the CD.

P.W. 14 Shafiqul Islam is a Data Entry Control Operator of ACC, Combined District Office-2. He stated that on 13.7.2014 he discharged his duty in the said office. He went along with Abul Kashem Bhuiyan to the office of the income tax in the room of Zahed Iqbal. Abul Kashem Bhuiyan handed over Tk. 20,000 to the accused Md. Zahed Iqbal in his presence. After that, the team of ACC in the presence of the Magistrate detained him. During cross-examination, he stated that he went to the office of the accused situated on the 5th floor and at the time of occurrence two persons were present in the room and another person was Osman. He along with Abul Kashem entered the room and other persons were standing behind the door. He denied the suggestion that he did not go along with Abul Kashem and that he did not witness the handing over bribe.

P.W. 15 Khandaker Akhteruzzaman is the Assistant Director of ACC, Head Office. He stated that on 11.8.2014 while he was discharging his duty as Sub-Assistant Director, Combined District Office, Chattogram, ACC, he took up an investigation of the case. He was appointed as investigating officer vide memo No-1724 dated 7.8.2014. He proved the memo as exhibit 11. On 11.8.2014, he seized the CD regarding the conversation between the accused Zahed Iqbal and Abul Kashem. He proved the sketch map as exhibit 12. He proved

the seizure list as exhibit-10 and his signature on the seizure is as exhibit-10/2. On 10.9.2014 at 10.30 he seized the table used by the accused Zahed Iqbal and handed over the table to the custody of UDA Osman Gani. He proved the seizure list as exhibit-7 and his signature as exhibit-7/2. One Abul Kashem Bhuiyan filed a complaint to the ACC, Chattogram regarding the demand of a bribe by accused Zahed Iqbal which was received on 10.7.2014 by the said office and the ER No. 43 dated 10.7.2014 was approved for conducting the trap. A trap team was formed by the Head Office which was sent through fax. He proved a copy of the fax as exhibit 13. On 13.7.2014 a list of inventory was prepared regarding the money supplied by the complainant Abul Kashem Bhuiyan in the presence of Magistrate Tasim-Al-Yeasin, Sub-Assistant Engineer Lokman Hakim and Account Assistant Osman Gani. During the investigation, he found the prima facie truth of the allegation made in the complaint and obtained approval from Head Office vide memo No. 37151 dated 22.12.2014 and submitted charge sheet on 31.12.2014. He proved the said approval as exhibit 14. During cross-examination, he stated that in the seizure list prepared regarding the recovery of the money, there is no signature of complainant Abul Kashem. At the time of handing over Tk. 20,000 he was not present. At the time of occurrence, Mehedi Hasan was discharging his duty as Deputy Commissioner of Taxes and he is not cited as a witness in the charge sheet. On that day, he was not present in his office. He denied the suggestion that no responsible officer of the tax department was cited as a witness in the case. The inventory was prepared as per presentation of the Abul Kaskem Bhuiyan, but he did not sign as a witness. He denied the suggestion that Tk. 20,000 was not recovered from the accused.

The learned Advocate Mr Md. Nasir Uddin appearing along with learned Advocate Mr. Md. Alamgir Hussain and learned

Advocate Mr. Md. Humayun Kabir submits that P.Ws. 1 to 6 are the members of the trap team and at the time of preparing the list of inventory, P.W. 12 Magistrate Tasim-Al-Yeasin was present there. At the time of the alleged recovery of 20 notes of Tk.1000 from the drawer of the accused, all of them were allegedly present but the evidence of P.W. 11 Abul Kaskem Bhuiyan regarding recovery of Tk. 20,000 mentioned in the list of inventory from the drawer of the accused is contradicted by P.Ws. 5, 6 and 12. The prosecution failed to prove that Tk. 20,000 was recovered from the drawer of the accused and the trial court without considering the evidence of P.Ws. 5, 6 and 12 and other evidence in a juxtaposition arrived at a wrong finding regarding the guilt of the accused. He further submits that Director Abdul Aziz, supervising officer of the trap team, was present at the time of the alleged recovery of Tk. 20,000 but he was not examined in the case. The prosecution failed to prove the charge against the appellant beyond all reasonable doubt. Therefore, he prayed for allowing the appeal.

The learned Advocate M/s. Chowdhury Nasima appearing on behalf of respondent No.2 ACC submits that P.W. 11 complainant Abul Kashem Bhuiyan filed a written complaint on 10.7.2014 to the Commissioner, ACC, Combined District Office, Chattogram stating that the accused demanded Tk.20,000 as bribe to him and there after the ACC had given approval on the same day (exhibit-2) to conduct the trap and formed a 6 members trap team headed by P.W. 2 Deputy Director Abu Sayed including P.Ws. 1 and 3 to 6 as member of the trap team by memo dated 10.07.2014 (exhibit-13) and after handing over Tk. 20000 to the accused, P.Ws. 1 to 4 recovered Tk. 20,000 in the presence of Magistrate P.W. 12 from the drawer of the accused. P.W. 14 Shafiqul Islam, the Data Entry Control Operator of the ACC also witnessed handing over Tk. 20,000 as a bribe to the accused and

he was also present at the time of recovery of the said money from the drawer of the accused. The prosecution witnesses proved the charge against the accused beyond all reasonable doubt and the trial court on proper assessment and evaluation of the evidence legally passed the impugned judgment and order convicting the accused. He prayed for the dismissal of the appeal.

I have considered the submission of the learned Advocate Mr. Md. Nasir Uddin who appeared on behalf of the appellant and the learned Advocate M/s. Chowdhury Nasima who appeared on behalf of respondent No. 2, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the records, it appears that P.W. 1 Abul Kashem Bhuiyan applied on 10.7.2014(exhibit 1) to the Director of the Anti-corruption Commission, Chattogram stating that the accused Md. Zahed Iqbal, Head Assistant, Office of the Deputy Commissioner of Taxes, Taxes Circle-75, Taxes Zone-4, Chattogram demanded Tk. 20,000 as a bribe to issue the demand note in respect of the income tax file of his wife Akter Jahan Bela. After that, the Commissioner of the Anti-Corruption Commission by order dated 10.7.2014 had approved to conduct the trap case which has been sent through fax (exhibit-2) (fax is not eligible for reading). After approval of the trap case, on the same day, the Director of Anti-Corruption Commission, Divisional Office, Chattogram by order dated 10.7.2014 formed a 5 member committee headed by P.W. 2 Abu Sayed, Deputy Director, Anti Corruption, Combined District Office, Chattogram-I(exhibit-13). P.Ws 3 to 6 were members of the trap team.

P.W.11 Md. Abul Kashem Bhuiyan stated that on 10.7.2014 he filed an application to the ACC against the accused Md. Zahed Iqbal regarding the demand of bribe amounting to Tk. 20,000 and on

13.7.2014 he went to the Office of the ACC along with Tk.20,000 and the Magistrate prepared the list of inventory. He proved the complaint petition as exhibit-1 and after preparing the list of inventory, the money was handed over to him. After that, he went to the office of the accused Md. Zahed Iqbal and handed over the said money to the accused Md. Zahed Iqbal and kept the money in his drawer. Instantaneously, the officers of the ACC detained the accused along with money. During cross-examination, P.W.11 stated that at the time of handing over the bribe, the constable or inspector of the ACC went along with him at 10-10.30 am and within one minute, the Magistrate, Deputy Director Abu Sayed, Director Abdul Aziz along with 4/5 other persons went there. At the time of handing over the bribe, he had given the signal and the Officers of the ACC entered into the room. He affirmed that at the time of handing over the bribe, the constable of ACC saw the occurrence. P.Ws 5 and 6 are the constables of ACC. No other constable of ACC was examined in the case. During cross-examination, P.W. 5 stated that he did not see that the accused was detained along with money. He did not see where from the money was recovered. P.W. 6 Constable Md. Noor Hussain Munshi stated in cross-examination that he did not see the recovery of the money. He saw that the money was kept on the table. P.W. 12 Magistrate Tasim-Al-Yeasin affirmed that he saw the money on the table and that at the time of recording the statement to the police, it was instructed that the money was recovered from the drawer of the accused. P.W. 3 Serajul Haque is the Assistant Director, Anti-corruption Commission. He stated that as a member of the trap team on 13.7.2014, he went to the office of the Taxes Circle-75, Taxes Zone-4 and took position on the 3rd floor and at that time Assistant Commissioner Maksud (PW-5) was present along with him. The above evidence of the prosecution witness depicts that there is a contradiction in the evidence of P.Ws.

11, 5, 6 and 12 as regards the handing over bribe and recovery of Tk. 20000 from the drawer of the table of the accused.

On scrutiny of the above evidence of the prosecution witnesses, it reveals that the P.W.11 Abul Kashem Bhuiyan allegedly handed over Tk. 20,000 to the accused Md. Zahed Iqbal Khan. During cross-examination, P.W. 11 stated that at the time of the handover of the bribe, the constables of the ACC were present and within one minute, the Magistrate (P.W.12), Deputy Director Abu Sayed (P.W.2), Director Abdul Aziz (not examined) along with 4/5 other persons entered the room. P.Ws 4 and 5 stated that they were not present at the time of handing over the bribe. Subsequently, they went to the 5th floor and saw that the accused was detained along with the money. P.W.12 stated that the money was recovered from the drawer of the accused. During cross-examination, he stated that he saw that the money was kept on the table of the accused. From the evidence of P.W. 11, it is clear as daylight that the Magistrate(P.W.12), Deputy Director Abu Sayed(P.W.2), and Director Abdul Aziz (not examined) entered the room of accused Md. Zahed Iqbal Khan at the same time. P.W. 12 Magistrate Tasim Al Yeasin did not corroborate the evidence of P.Ws. 1, 2 and 4 that the money was recovered from the drawer of the accused in his presence. The evidence of P.W.11 that at the time of handing over the bribe to the accused, constables of ACC were also present there is not corroborated by P.Ws. 5 and 6 who are the constables of ACC. If the Magistrate (P.W.12) entered the room of the accused along with P.Ws. 2, 5 and 6 there is no scope to witness the different facts. Admittedly P.W. 12 Magistrate Tasim Al-Yeasin and P.W. 2 Deputy Director Abu Sayed entered the room of the accused at the same time, but evidence of P.W. 2 regarding the recovery of the money from the middle drawer of the accused is contradicted by P.W. 12.

In view of the above evidence, I am of the view that the alleged money was recovered from the table of the accused, not from the middle drawer of the table used by accused Md. Zahed Iqbal Khan. Keeping money on the table of the accused by P.W. 11 Abul Kashem Bhuiyan does not mean that the accused accepted the bribe unless the accused received the money and kept it in his drawer or in his pocket. P.W. 12 stated that at the time of recording his statement by police, it was instructed that money was recovered from the drawer of the accused. The above evidence of P.W. 12 depicts that the money recovered from the middle drawer of the accused is a subsequent embellishment and afterthought.

P.W. 14 Shafiqul Islam is a Data Entry Control Operator of ACC. He stated that on 13.7.2014 he along with Abul Kashem Bhuiyna went to the Office of the accused Zahed Iqbal Khan and in his presence, P.W. 11 Abul Kashem Bhuiyan handed over Tk. 20,000 to the accused as a bribe. The above evidence of P.W. 14 is not corroborated by P.W.11. P.W. 14 Shafiqul Islam is not a member of the trap team. There was no reason for P.W 14 to go to the officer of the accused. None of the P.W stated that P.W. 14 Shafiqul Islam also went along with them. I am of the view that the P.Ws. 14 Shafiqul Islam is a chance witness. Therefore, the evidence of P.W. 14 cannot be relied on by this court to find the accused guilty of the offence under section 161 of the Penal Code,1860 and section 5(2) of the Prevention of Corruption Act, 1947.

In view of the evidence, facts and circumstances of the case and the findings, observation and proposition, I am of the view that the prosecution failed to prove the charge against the accused beyond all reasonable doubt. The trial court without proper assessment and

evaluation of the evidence of the prosecution witnesses illegally recorded the finding of guilt of the accused.

I find merit in the appeal.

Accordingly, the appeal is allowed.

The impugned judgment and order of conviction and sentence passed by the trial court against the accused Md. Zahed Iqbal Khan is hereby set aside.

Send down the lower Court's record at once.